

Opinion of the court.

laws, also liable in damages? If so, before what tribunal should they be sued? If small damages were claimed, would a justice of the peace, or a judge of inferior jurisdiction, have authority to entertain the case, and pass upon the question whether his superior judges acted and decided rightly or wrongly? It cannot be that such is the law. "There is no court," it was said in *Le Caux v. Eden*,* "equal to the trial of a superior judge." Were the law otherwise (to use the words of Lord Stair†), "no man but a beggar or a fool would be a judge."

This question does not depend upon reasoning alone. The case of *Ackerley v. Parkinson*‡ is in point, and other cases are to the same effect.§

Mr. Justice FIELD, after stating the case, delivered the opinion of the court, as follows:

The Superior Court of Massachusetts is a court of general jurisdiction, and is empowered by statute to admit attorneys and counsellors to practise in the courts of the State, upon evidence of their possessing good moral character, and of having devoted a prescribed number of years to the study of the law, in the office of some attorney in the State, and to remove them "for any deceit, malpractice, or other gross misconduct."

Both the admission and the removal of attorneys are judicial acts. It has been so decided in repeated instances. It was declared in *Ex parte Secombe*,|| and was affirmed in *Ex parte Garland*.¶

Now, it is a general principle applicable to all judicial officers, that they are not liable to a civil action for any judicial act done within their jurisdiction. In reference to judges of limited and inferior authority, it has been held

* Douglas, 594.

† 2 Shaw's Appeal Cases, 134.

‡ 3 Maule & Selwyn, 411.

§ The *Marshalsea*, 10 Reports, 68 b; *Gwynne v. Poole*, Lutwyche, 937; *Lowther v. Earl of Radnor*, 8 East, 113; *Truscott v. Carpenter*, *Ld. Raymond*, 229; *Yates v. Lansing*, 5 Johnson, 289.

|| 19 Howard, 9.

¶ 4 Wall. 378.